



225 State Route 35, Suite 208, Red Bank, New Jersey 07701

EMPLOYEE CONFIDENTIALITY AGREEMENT

Employee Name: _____ ("Employee")

This Confidentiality Agreement is made between **The Medical Group of New Jersey** (hereinafter referred to as "TMGNJ" or "the Practice") and the Employee.

In consideration of Employee being employed by the Practice and salary, wages or other compensation to be paid by the Practice to Employee, it hereby is agreed as follows:

1. Employee understands that the Practice has a legal and ethical responsibility to maintain patient privacy including, but not limited to, obligations to protect and safeguard the confidentiality of patient information. Employee further understands that during the course of, or by reason of, her employment with the Practice that she may have access to such confidential patient information as well as certain other information (hereinafter referred to collectively as "Information") which is either non-public, confidential, secret, proprietary or which otherwise may provide the Practice with a competitive advantage. Such Information includes, but is not limited to, financial data and operational information pertaining to a relating to the Practice. Employee understands that she must sign and comply with this Confidentiality Agreement as a condition of her employment and in order to get authorization for access to any of this Information. Employee further understands that the unauthorized dissemination of this Information may result in damage to the Practice's patients and/or to the Practice's good will, reputation and competitive advantage.
2. During the term of her employment and at all times thereafter, Employee agrees to keep confidential all verbal, written and electronic Information that is disclosed to or otherwise obtained by her, directly or indirectly, as a result of their employment with the Practice. With respect to this Information:
 - A. Employee will use Information only in the performance of Employee's duties for the Practice. Employee will not use Information at any time (during or after Employee's employment with the Practice) for Employee's personal benefit, for the benefit of any other individual or entity, or in any manner adverse to the interests of the Practice and its patients;
 - B. Employee will not disclose Information at any time (during or after Employee's employment with the Practice) except to authorized Practice personnel, unless the Practice consents in advance in writing or unless the Information indisputably becomes of public knowledge or enters the public domain (other than through Employee's direct or indirect act or omission);
 - C. Employee will not access or view any Information other than what is required to do her job. If Employee has any questions about whether access to certain Information is required for her job, she will immediately ask the Office Manager for clarification;
 - D. Employee will safeguard the Information by all reasonable steps and abide by all policies and procedures of the Practice in effect from time to time regarding storage, copying and handling of documents;

- E. Employee agrees that she shall not keep Information elsewhere than on the Practice's premises, nor remove therefrom, any property of the Practice, except and only so long as may be required for the performance of her duties with the Practice. Additionally, Employee will not copy, remove or allow unauthorized access to such Information or any other Practice or client documents;
- F. Employee understands that her personal access codes, user ID(s) and password(s) used to access computer systems or other equipment are also confidential. Employee will not willingly inform another person of her computer password or knowingly use another person's computer password instead of her own for any reason;
- G. Employee will not make any unauthorized transmissions, inquiries, modifications, or purgings of Information. Such unauthorized transmissions include, but are not limited to, removing and/or transferring Information from the Practice's computer system to unauthorized locations;
- H. Employee will not discuss Information in an area where unauthorized individuals may hear such Information (for example, on elevators, in the cafeteria, on public transportation, at restaurants and at social events). Employee understands that is not acceptable to discuss any Information in public areas, even if specifics such as client names are not used; and
- I. Employee will return all materials, substances, models, software, prototypes and the like containing and/or relating to Information, together with all other property of the Practice (all of which shall remain the exclusive property of the Practice) and its patients, to the Practice when Employee's employment relationship with the Practice terminates or otherwise on demand and, at that time Employee will certify to the Practice, in writing and under oath, that Employee has complied with this Confidentiality Agreement. Employee shall not retain any copies or reproductions of correspondence, memoranda, reports, notebooks, drawings, photographs, databases, diskettes, or other documents or electronically stored information of any kind relating in any way to the business, potential business or affairs of the Practice and its patients.

- 3. Employee understands that violation of this Confidentiality Agreement may result in disciplinary action, up to and including termination of employment.
- 4. The restrictions contained in this Confidentiality Agreement shall be enforceable without regard to the cause(s) or circumstances relating to the termination of Employee's employment with the Practice.
- 5. The Practice may notify any future or prospective employer or third party of the existence of this Confidentiality Agreement.
- 6. Employee understands and agrees that their obligation to maintain the confidentiality of this Information continues for all time in the future, even after she has ceased working for the Practice.
- 7. This Confidentiality Agreement shall be binding upon Employee and her heirs, executors, personal representatives and successors in interest, and shall insure to the benefit of the Practice, its successors and assigns.
- 8. This Confidentiality Agreement shall be governed by and construed in accordance with the laws of the State of New Jersey.

Employee's Signature

Date